

PADILLA v. SKYLINE BEAR VALLEY MOUNTAIN RESORT

21CV45139

DEFENDANT'S MOTION FOR CHANGE OF VENUE

This is a personal injury premises liability action involving the alleged failure of the binding on a snowboard rented from defendant. Before the Court this day is an unopposed motion to change venue to Alpine County.

Venue rules designate a particular county (or counties) within California as the proper place for trial. The purpose of venue rules is to give defendants some control in the choice of where they are sued. Venue is not jurisdictional in the fundamental sense, though certain actions can “only” be brought in specific counties. The test largely begins with whether the main relief sought in the original operative pleading relates to rights in realty (local) or personality (transitory). Venue is to be determined at the outset of the action based on the averments set forth in the operative pleading when the motion to transfer is first made. The burden of proof on a venue challenge rests with the moving party to overcome the strong presumption that the plaintiff has selected a proper venue. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 482; *Dow AgroScience LLC v. Superior Court* (2017) 16 Cal.App.5th 1067, 1076-1078; *Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836; *K.R.I. Partnership v. Superior Court* (2004) 120 Cal.App.4th 490, 505; *Alexander v. Superior Court* (2003) 114 Cal.App.4th 723, 731.)

Actions for physical injuries are triable either in the county where defendant resides or in the county where the physical injury occurred. (CCP §395(a).) When the defendant is a corporation, “residence” means principal place of business. (CCP §395.5.) However, defendants have no right to have the action tried at their residence if the action is filed where the injury occurred.

Here, the injury occurred at 2280 CA-207, Bear Valley, CA 95223 (see Para 5). Although, plaintiff alleges this to be in Calaveras County (see Complaint Para 1, this Court takes judicial notice that the location is just inside the western-most boundary of Alpine County.

Plaintiff separately claims that defendant “resides” in Calaveras County (see Complaint Para 1); however, unrefuted evidence establishes that Skyline Bear Valley Resorts, Inc. has its principal place of business at the resort itself, i.e., in Alpine County.

Based on the foregoing, the motion to transfer venue is GRANTED. As this case was filed in the wrong county, plaintiff is responsible for paying the costs and fees of transferring the action to Alpine County within 30 days after service of notice of the transfer order, upon risk of dismissal. (See CCP §399(a); *Stasz v. Eisenberg* (2010) 190 Cal.App.4th 1032, 1037.)

The Clerk to provide notice of this Ruling forthwith to the parties. Defendant to provide a formal Order complying with Rule of Court 3.1312 in conformity with this Ruling.

**GOLD CREEK ESTATE OWNERS' ASSOCIATION v. VALLEY
SPRINGS GOLD CREEK, INC., et al.**

17CV42103

**PLAINTIFF'S MOTION TO FILE SECOND AMENDED
COMPLAINT**

This is a complex construction defect action involving allegations of negligent design and implementation of common areas within a condominium complex. Before the Court is plaintiff's opposed motion for leave to file a Second Amended Complaint.

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Motions for leave are to follow the regular notice requirements contained in CCP §1005(b). Pursuant to California Rules of Court, Rule 3.1324, the moving party must:

- a) Specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and
- b) Include with the moving papers:
 - a copy of the proposed amended pleading; and
 - a declaration specifying:
 - (1) the effect of the amendment(s);
 - (2) why the amendment is necessary and proper;
 - (3) when the facts giving rise to the amended allegations were discovered;
and
 - (4) the reasons why the request was not made earlier.

Initially, there is no declaration accompanying the Court's copy of the motion. Although the points and authorities express that a declaration including the proposed new pleading and the 3.1324 factors accompanied the motion, no such declaration with attachments was filed with the Court, preventing further consideration of the motion at this time.

Based on the foregoing, Plaintiff's Motion to File Second Amended Complaint is Denied, without prejudice to refile and fully comply with all statutory and CRC requirements.

The Clerk to provide notice of this Ruling forthwith to the parties. No further formal Order is required beyond the Minute Order.